

estate, which is a fact to be ascertained independently of any discretion in the trustee" (a). But there is much room for judgment in the time * and mode of proceeding to a sale, and the precautions that are taken will have a material influence upon the price; and Mr. Fearne's opinion cannot at the present day be maintained (a).

Examples of discretionary trusts.—A fund vested in trustees upon trust to distribute among such charitable objects as the trustees shall think fit (b), or an advowson conveyed to them upon trust to elect and present a proper preacher (c), is clearly a discretionary trust; for the selection of the most deserving objects in the first instance, and the choice of the best candidate in the second, is a matter calling for serious deliberation, and not to be determined upon without due regard to the merits of the candidates, and all the particular circumstances of the case.

3. Mixture of trust and power.—There is frequent mention made in the books of a *mixture of trust and power* (d), by which is meant a trust of which the outline only is sketched by the settlor, while the details are to be filled up by the good sense of the trustees. The *exercise* of such a power is *imperative*, while the *mode* of its execution is matter of judgment and *discretionary*.

Distinguished from trust with power annexed.—A *mixture of trust and power* is not to be confounded with a *common trust to which a power is annexed*; for, in the former case, as in a trust "to distribute at the discretion of the trustees," they are bound at all events to distribute, and the manner only is left open;¹ but in the latter case, the trust itself is complete, and the power, being but an accessory, may be exercised or not, as the trustee may deem it expedient; as

(a) Fearne's P. W. 313.

(a) See King v. Bellord, 1 H. & M. 343; Robson v. Flight, 5 N. R. 344; S. C. 4 De G. J. & S. 608; Clarke v. Royal Panopticon, 4 Drew. 29.

(b) Attorney-General v. Gleg, 1 Atk. 356; Hibbard v. Lambe, Amb.

309; Cole v. Wade, 16 Ves. 27; Gower v. Mainwaring, 2 Ves. 87.

(c) Attorney-General v. Scott, 1 Ves. 413; Potter v. Chapman, Amb. 98.

(d) Cole v. Wade, 16 Ves. 43; Gower v. Mainwaring, 2 Ves. 89.

¹ Steere v. Steere, 5 Johns. Ch. 1; 9 Am. Dec. 256.